

Tentative Rulings for August 11, 2026 Department 6

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 6 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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- Meeting Number: **161 830 3643**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

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1.

CASE #	CASE NAME	HEARING NAME
CVRI2304785	420 HARLEY KNOX, LLC vs COTC MANAGEMENT, LLC	MOTION FOR PROTECTIVE ORDER

Tentative Ruling:

Moving party: Defendants COTC Management, LLC, 420-1, LLC (defaulted 7/8/2026), 420-3 LLC (defaulted 7/8/2026), Dustin Milner (Stayed as of 6/29/2026), LT Canna Distro, Inc., and Better Than Good Holdings, Inc.

Responding party: Plaintiff 420 Harley Knox, LLC

This is a commercial lease dispute. Plaintiff 420 Harley Knox, LLC ("Plaintiff") alleges that Defendants COTC Management, LLC ("COTC"), 420-1, LLC, 420-3, LLC, Dustin Milner ("Milner"), LT Canna Distro, Inc., and Better Than Good Holdings, Inc. refused to pay rent, abandoned the commercial premises located at 420 Harley Knox Boulevard, Perris, before the end of the lease term, and left the premises with damages concerning chemicals released. Plaintiff asserts that it has been damaged in the sum of at least \$1,737,606.35, plus interest. The complaint, filed 9/12/23, asserts a single cause of action for breach of lease, and alleges that each defendant is the alter ego of the other defendants.

Cross-Complainant COTC filed a Third Amended Cross-Complaint ("TACC") on 1/30/25 against Plaintiff 420 Harley Knox, LLC. It alleges that Plaintiff failed to address a single-utility-meter issue at the building, which forced COTC to pay for the electricity of another tenant, Virtual Innovations, LLC, which leased 73.7% of the same building. The TACC asserts: (1) breach of lease; (2) breach of the implied covenant of good faith and fair dealing; (3) breach of separate oral contract; (4) promissory estoppel; (5) promissory fraud/false promise.

On 3/19/26, Plaintiff added Defendant Talarya Brands, LLC as a doe defendant.
Trial originally set for 8/14/26 was vacated.

Now, Defendants COTC, 420-1, 420-3, Milner, LT Canna Distro, Inc., and Better Than Good Holdings, Inc. move for a protective order to block Plaintiff's second set of Special Interrogatories ("SROGs") and third set of Requests for Production of Documents ("RFPs"). These discoveries were served on 3/27/26. Defendants argue that Plaintiff's discovery requests are overbroad, burdensome, harassing, irrelevant, and cumulative. Defendants contend that Plaintiff's service of voluminous discovery requests on the eve of trial is unwarranted. Defendants argue that good cause for a protective order is shown and that Plaintiff's declarations of necessity are deficient. Finally, Defendants assert that Plaintiff is restricted to a cumulative total of 35 special interrogatories across all defendants who are "aligned in interest against a single opponent."

In opposition, Plaintiff argues that Defendants have failed to show good cause or provide specific facts showing the actual burden of responding. Plaintiff argues that Defendants 420-1 and 420-3 are suspended entities that cannot respond to discovery, so the discovery at issue totals only 189 requests (81 RFPs and 108 SROGs). Plaintiff asserts that the discovery is narrowly tailored and directly relevant to its alter-ego claims based on new information discovered during Milner's deposition on 3/13/26 and 3/16/26. Plaintiff also asserts that the 35-interrogatory limit applies to each party, but not collective across all defendants.

In reply, Defendants argue that Defendant Milner has now filed for bankruptcy on 6/24/26, which triggers an automatic stay of the action as to him. Defendants contend that they have now responded to 693 of the 1391 written discovery requests. Defendants argue that Plaintiff has failed to show why the voluminous discovery responses already produced are insufficient to prove its case.

Analysis

Meet and Confer

The parties are required to meet and confer before filing a motion for a protective order. (Code Civ. Proc., §§2016.040, 2030.090(a), 2031.060(a).) Code of Civil Procedure section 2016.040 requires a meet-and-confer declaration to "state facts showing a reasonable and good faith attempt, either ***in person, by telephone, or by videoconference***" to resolve disputes. A good faith meet and confer attempt requires more than just an attempt to persuade the objector of the error of his or her ways, it requires counsel to talk the matter over, compare their views, consult, and deliberate. (*Clemente v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) It requires a serious attempt by the moving party to informally resolve each issue with the responses. (*Id.* at 1293.) Arguments and debates do not constitute an earnest attempt to resolve discovery disputes. (*In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1293.) The parties must present the merits of the respective positions, and "[o]nly after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a 'sincere' effort to resolve the matter." (*Id.* at 1293 [internal quotation marks omitted].) Defense counsel sent a letter on 4/13/26 and a follow-up email on 4/25/26. (Kneafsey Decl. ¶ 6.) Plaintiff's counsel did not provide a substantive response until 4/28/26, the day before the discovery responses were due. (*Id.*) Defense counsel stated that the parties "met and conferred ... the same day" but he does *not* identify how that meet and confer occurred. (*Id.*) A mere exchange of correspondence is not sufficient. Nevertheless, the court will decide the issue on the merits.

Standards

Code of Civil Procedure section 2017.020 permits the court to limit the scope of discovery "if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." Section

§2019.030 permits the court to generally issue a protective order if: (1) the discovery “is unreasonable cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive”; or (2) the discovery “is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation.”

A motion for protective order must be sought promptly. (Code Civ. Proc., §§ 2030.090(a), 2031.060(a).) The discoveries were served on 3/27/26. Defendants filed this motion on 4/30/26 after obtaining a one-day extension from Plaintiff’s counsel. The motion is timely.

Automatic Stay as to Defendant Milner

Defendant Milner filed a Chapter 7 bankruptcy in the United States Bankruptcy Court for the Southern District of California, case no. 26-02680-7. Under 11 U.S.C. § 362(a), the filing of this petition triggers an automatic stay of the continuation of any judicial proceeding against the debtor. As such, this pending motion for a protective order and all outstanding discovery obligations as to Defendant Milner (individually) are stayed.

The Suspended Entities (420-1, LLC & 420-3, LLC)

The records show that Defendants 420-1, LLC and 420-3, LLC are suspended entities. A suspended corporation or limited liability company “lacks the legal capacity to prosecute or defend a civil action during its suspension.” (*Casiopea Bovet, LLC v. Chiang* (2017) 12 Cal.App.5th 656, 662.) As 420-1, LLC and 420-3, LLC are suspended, they cannot seek relief from this court or respond to the discoveries. Accordingly, the motion is deemed moot as to 420-1, LLC and 420-3, LLC.

Merits

At the heart of this motion is whether the volume of Plaintiff’s discovery is justified. There are 189 total active requests across the remaining viable defendants.

Special Interrogatories (SROGs)

Defendants argue the SROGs are cumulative and excessive. They point to a historical total of more than 1,300 discovery requests. The record, however, does not support that argument. Plaintiff previously withdrew 468 interrogatories and 150 RFPs. Defendants also previously answered only 35 SROGs served on each party. For the three active entity defendants (COTC, LT Canna, and Better Than Good Holdings), Plaintiff propounded a total of 108 SROGs. Plaintiff has also shown good cause to exceed the 35-interrogatory limit under Code of Civil Procedure section 2030.040(b) and produced the necessary declarations of necessity. Here, Plaintiff amended the complaint on 3/19/26 and 4/1/26 to add new doe defendants, Talarya Brands, LLC and LT Canna. Alter ego claims require factual discovery such as commingling of funds and assets, failure to segregate funds of the separate entities, diversion of funds for non-corporate uses, disregard of corporate formalities, and shared assets, to name a

few. (*Zoran Corp. v. Chen* (2010) 185 Cal.App.4th 799, 811-812.) During Milner's 3/13/26 and 3/16/26 depositions, he was unable to provide the relevant financial information of the entities. Written discoveries are a proper means to obtain that information. Defendants also fail to show undue burden. Their claim of undue burden is conclusory. Their motion does not include specific factual showing to quantify the "quantum of work required" to respond. (*West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 417.) It simply asserts that the volume of discovery is too high for the case. This is insufficient. Defendants have not justified a blanket order excusing it from all discoveries. They have not shown good cause for a protective order. Accordingly, the court should deny the motion for a protective order for the SROGs propounded on COTC, LT Canna, and Better Than Good Holdings.

Requests for Production of Documents (RFPs)

As to the RFPs, they seek records concerning bank accounts, financials, assets, and shared operations with newly discovered entities. According to deposition testimonies, one of Defendants' entities relocated the company's operations, including employees and equipment, to a similarly licensed affiliate. The new entity was then authorized to operate in the same manner as a commercial cannabis manufacturer and distributor. The testimony also suggests that multiple affiliated businesses were operating from the same premises, with employees from other related companies working there without paying rent. These are relevant to Plaintiff's alter ego claims theories. Because Defendants have failed to identify which specific requests are overbroad and failed to produce evidence of the actual burden of production, there is no good cause under Section 2031.060(b).

Accordingly, the Court denies the motion for a protective order as to the RFPs propounded on COTC, LT Canna, and Better Than Good Holdings.

Under Code of Civil Procedure sections 2030.090(d) and 2031.060(h), monetary sanctions are mandatory against a party who unsuccessfully makes or opposes a motion for protective order, unless the court finds that party acted with "substantial justification" or that other circumstances make the imposition of sanctions unjust. Here, neither side requested sanctions. The court does not impose sanctions.

Summary

On the merits, deny the motion as to Defendants COTC Management, LLC, LT Canna Distro, Inc., and Better Than Good Holdings, Inc. Defendants to serve code-compliant responses within 20 days.

Deem the motion moot as to 420-1, LLC and 420-3, LLC due to their lack of capacity as suspended entities.

Stay this motion against Defendant Dustin Milner under 11 U.S.C. § 362(a).

No sanctions.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2304785	420 HARLEY KNOX, LLC vs COTC MANAGEMENT, LLC	MOTION TO BE RELIEVED AS COUNSEL FOR 420-1, LLC

Tentative Ruling:

After reviewing the declaration of counsel, Sean Kneafsey, (CRC 3.1362(d)), the court finds that counsel has shown sufficient reasons why the motion to be relieved as counsel should be granted (Manfredi & Levine vs. Superior Court (Barles) (1998) 66 Cal. App. 4th 1128, 1134). Notice to client was made (Section 3(a) and (b) MC-052; CRC 3.1362(d)). Accordingly, the Motion to be Relieved as Counsel of Record is Granted. Counsel is ordered to prepare and submit an order for the Court's signature.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2304785	420 HARLEY KNOX, LLC vs COTC MANAGEMENT, LLC	MOTION TO BE RELIEVED AS COUNSEL FOR 420-3, LLC

Tentative Ruling:

After reviewing the declaration of counsel, Sean Kneafsey, (CRC 3.1362(d)), the court finds that counsel has shown sufficient reasons why the motion to be relieved as counsel should be granted (Manfredi & Levine vs. Superior Court (Barles) (1998) 66 Cal. App. 4th 1128, 1134). Notice to client was made (Section 3(a) and (b) MC-052; CRC 3.1362(d)). Accordingly, the Motion to be Relieved as Counsel of Record is Granted. Counsel is ordered to prepare and submit an order for the Court's signature.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2304785	420 HARLEY KNOX, LLC vs COTC MANAGEMENT, LLC	MOTION TO QUASH SERVICE OF SUMMONS ON COMPLAINT

Tentative Ruling:

Moving party: Defendant Talarya Brands, LLC
Responding party: Plaintiff 420 Harley Knox, LLC

This is a commercial lease dispute. Plaintiff 420 Harley Knox, LLC ("Plaintiff") alleges that Defendants COTC Management, LLC ("COTC"), 420-1, LLC, 420-3, LLC, Dustin Milner ("Milner"), LT Canna Distro, Inc., and Better Than Good Holdings, Inc. refused to pay rent, abandoned the commercial premises located at 420 Harley Knox Boulevard, Perris, before the end of the lease term, and left the premises with damages

concerning chemicals released. Plaintiff asserts that it has been damaged in the sum of at least \$1,737,606.35, plus interest. The complaint, filed 9/12/23, asserts a single cause of action for breach of lease, and alleges that each defendant is the alter ego of the other defendants.

Cross-Complainant COTC filed a Third Amended Cross-Complaint (“TACC”) on 1/30/25 against Plaintiff 420 Harley Knox, LLC. It alleges that Plaintiff failed to set up separate utility meters at the building, which forced COTC to pay for the electricity of another tenant (Virtual Innovations, LLC) that leased 73.7% of the same building. The TACC asserts: (1) breach of lease; (2) breach of the implied covenant of good faith and fair dealing; (3) breach of separate oral contract; (4) promissory estoppel; (5) promissory fraud/false promise.

On 3/19/26, Plaintiff added Defendant Talarya Brands, LLC (“Defendant”) as a doe defendant. **Trial originally set for 8/14/26 was vacated.**

Now, Defendant moves to quash the summons on the grounds that Plaintiff 420 Harley Knox, LLC untimely added it as a Defendant. It contends Plaintiff was aware of its identity when the parties executed the Third Amendment to Lease on 5/20/22, when Dustin Milner sent emails as early as 12/20/22 using an email signature block identifying himself as the CEO of Talarya Brands, LLC, and when Defendants provided discovery responses in November 2024. It argues prejudice due to the lack of discovery on the eve of trial and discovery is now closed.

Plaintiff argues that the Doe amendments meet CCP §474 as it was not aware of Defendant’s identity and its probable liability as an alter ego until the depositions of Dustin Milner on 3/13/26 and 3/16/26. It contends that it was not aware of it earlier. Plaintiff asserts that it was not required to show diligence, that Defendants are not prejudiced, and that adding Talarya to the action will result in judicial efficiency by avoiding a separate litigation on the same issues. Plaintiff argues that claims are not time-barred.

Defendant repeats the arguments from the moving papers.

Analysis

In *Barrows v. American Motors Corp.* (1983) 144 Cal.App.3d 1, 9, the court found that a motion challenging Doe amendments must be based on an evidence motion, such as a motion for summary judgment. In *A.N. v. County of Los Angeles* (2009) 171 Cal.App.4th 1058, 1067, the court followed *Barrows* and stated that a challenge of a Doe amendment must be via an evidence motion. There, the defendant had filed a motion to quash, and the court treated it as a *Barrows* motion. (*Id.* at 1063-1064, 1067.) Thus, this is technically a *Barrows* motion.

“Absent compliance with Code of Civil Procedure section 474, service of a summons on a purported Doe defendant is ineffective. [Citation.] “[O]ne “who is not named either by his true or a fictitious name or as an unknown defendant is not a proper party to an action, and service of summons upon such person upon proper motion

should be quashed.” [Citation.]’ ” (*Fireman's Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1145.) “Code of Civil Procedure section 474 permits a plaintiff to amend complaints by adding parties as Doe defendants ‘when the plaintiff is ignorant of the name of a defendant’ at the time the complaint is filed.[] The purpose of section 474 is to enable a plaintiff to avoid the bar of the statute of limitations when he is ignorant of the identity of the defendant. [Citation.] The cases discussing section 474 deal with whether the plaintiff was truly ignorant of the identity of the person brought into the case as a Doe defendant because if that requirement is met, the amendment to the complaint relates back to the date the complaint was filed and the statute of limitations is preserved. [Citations.]” (*Davis v. Marin* (2000) 80 Cal.App.4th 380, 386-387.)

The question, however, is not whether Plaintiff was aware of Defendant’s identity at the time of the complaint—it appears it was not. In reply, Defendant confuses the issue by focusing on cases involving “should have known” the identity at the time of the complaint. The issue is whether Plaintiff timely filed the Doe amendment, as “a plaintiff may not ‘unreasonably delay’ his or her filing of a Doe amendment after learning a defendant’s identity.” (*A.N.*, supra, 171 Cal.App.4th at 1058.)

Furthermore, and as an aside, there is no statute of limitations issue even if the relation back doctrine was not to apply. The underlying breach of the written lease occurred 5/20/22 after the execution of the 3rd amendment to lease, and Plaintiff filed the Doe amendment on 3/19/26—within the 4-year statute of limitations for breach of contract. (CCP §337.) Thus, Plaintiff did not need to do a Doe amendment, it could have just sought leave to amend under CCP §473(a)(1) on an ex parte basis. The trial court has discretion to add party by amendments, and the defendant has to demonstrate prejudice. (*Fifth & Broadway Partnership v. Kimny, Inc.* (1980) 102 Cal.App.3d 195, 199.)

Defendant’s argument first goes to constructive knowledge—rather than actual knowledge. First, it points to the third amendment to lease executed on 5/20/22, which merely references a financing term sheet with another entity, and did not actually identify Defendant Talarya. Second, it points to Dustin Milner’s email signature blocks, which again merely state that Milner is the CEO of Talarya, and did not identify Defendant as a party liable for contract breach. At best, it points to some discovery responses served in November 2024, where Defendants COTC Management, LLC and Better Than Good Holdings, Inc. stated that Talarya was their ultimate parent corporation. There are, however, no apparent facts linking Talarya to the alleged contract breach. To the extent that Defendant argues a lack of diligence on Plaintiff’s part, that is not the standard.

The real issue is prejudice as delay alone is not sufficient. (*Barrows*, supra, 144 Cal.App.3d at 9.) Here, Defendant could have moved Ex Parte seeking to reopen discovery concurrently with this motion, but it has not done so. If the court grants a motion to reopen discovery, there would be no prejudice.

Accordingly, the court denies the motion.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2403632	LOPEZ vs COMMUNITY CARE REHAB CENTER, LLC	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling:

Moving party: Defendant Mousa Matar, M.D. and Mousa Matar, M.D., Inc.
Responding party: Plaintiffs Josellin Lopez, et al.

This is medical malpractice case. On 1/17/2025, Josellin Lopez, as heir and successor in Interest to the Estate of Renardo Otoniel Lopez, deceased, Renardo Natael Lopez, Jr., as an heir, Cristian Alexander Lopez, as an heir, Gisselle Natalie Lopez, as an heir, and Jaylene Teresa Lopez, as a minor through her guardian ad litem Josellin Lopez ("Plaintiffs") filed the operative first amended complaint ("FAC") against Mousa Matar, M.D. and Mousa Matar, M.D., Inc. ("Dr. Matar"), among other parties. Relevant to this motion, the complaint asserts causes of action for professional negligence and wrongful death against Defendants. The FAC concerns medical care provided to Renardo Otoniel Lopez ("Decedent"), who died on 7/17/2023. (FAC, ¶ 2.)

On 6/27/2023, Decedent was admitted to the emergency room at St. Bernardine Medical center with stroke-like symptoms, with a prior history of strokes. (FAC, ¶ 16.) On 6/30/2023, Decedent was transferred to Defendant Community Care Rehab Center, LLC ("Community") for post-stroke recovery treatment and rehabilitation. (*Id.*) Dr. Matar provided treatment to Decedent during Decedent's time at Community. (*Id.* at ¶ 17.) While at Community, Decedent suffered two unwitnessed falls. (*Id.*)

Relevant to this motion, after Decedent's first fall, moving party Dr. Matar is alleged to have notified Decedent's designated contact to consult regarding the decision to keep Decedent at Community rather than transfer him to a local hospital for evaluation for the injuries sustained in the falls. (*Id.*)

Now, Dr. Matar moves for summary judgment. Only the first cause of action for professional negligence and second cause of action for wrongful death are brought against Dr. Matar.

Dr. Matar argues that the undisputed facts show he complied with the standard of care when treating Decedent, negating any breach of duty and that there is an absence of legal causation between any negligent act or omission by Dr. Matar and Decedent's death. In support, Dr. Matar provides an expert declaration from Ryan P. Klien, M.D. ("Dr. Klien").

In opposition, Plaintiffs provide expert testimony from Omar S. Darish, MSc., D.O. ("Dr. Darish") and argue that the conflicting expert opinions create a triable issue of material fact, such that the court should deny the motion entirely.

In reply, Dr. Matar objects to Dr. Darish's declaration and argues without it, Plaintiff fails to create a triable issue of material fact.

ANALYSIS

I. Summary Judgment Standard

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 855.) A defendant can meet his initial burden by showing that one or more elements of the cause of action cannot be established, or that there is a complete defense. (CCP § 437c(p)(2).) To demonstrate that a cause of action cannot be established, the defendant must either negate an essential element of the plaintiff's cause of action or show that the plaintiff lacks evidence. (*Chavez v. Glock* (2012) 207 Cal.App.4th 1283, 1301.) To negate an element, the defendant must establish that plaintiff's claims fail as a matter of law. (*Eriksson v. Nunnick* (2011) 191 Cal.App.4th 826, 849 (applying rule to issues of duty).) To demonstrate that the plaintiff lacks evidence, the defendant must show that the plaintiff does not possess and cannot reasonably obtain needed evidence. (*Aguilar*, supra, 25 Cal.4th at 855.) A defendant may not simply point to an absence of evidence but must show that the plaintiff cannot reasonably obtain evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.)

Once that burden has been met, the burden shifts to the opposing party to produce admissible evidence showing a triable issue of material fact exists. (CCP § 437c(p)(2); *Arcienaga v. Bank of San Bernardino* (1997) 52 Cal.App.4th 213, 231.) Although summary judgment is no longer considered a "disfavored" procedure, the rule continues that the moving party's evidence must be strictly construed, while the opposing party's evidence must be liberally construed. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832.)

II. MSJ - Merits

A. Evidentiary Objections

Plaintiffs submit nine evidentiary objections to the Declaration of Dr. Klein on the grounds of improper legal conclusion, lacks foundation, and expert opinions based on speculation. The court OVERRULES the objections – Dr. Klien presents sufficient foundation, reasoning, and evidentiary support for his opinions.

Similarly, Dr. Matar submits three evidentiary objections to the Declaration of Dr. Darwish on the grounds of improper and conclusory expert opinions and lacks foundation. The court OVERRULES these objections as well as Dr. Darwish also provides sufficient foundation, reasoning, and evidentiary support for his opinions.

B. Request for Judicial Notice

Plaintiffs request judicial notice of Decedent's death certificate. The court DENIES the request as irrelevant to the court's determination on this motion. (*Aquila, Inc. v. Superior Court* (2007) 148 Cal.App.5th 556, 569 [only relevant material may be noticed].)

C. Conflicting Expert Opinions Creates a Triable Issue of Material Fact

The duty owed by a medical provider is established by the standard of care followed by other medical providers in the same or similar community. "Expert evidence in a medical malpractice suit is conclusive as to the proof of the prevailing skill and learning in the locality and of the propriety of the particular conduct by the practitioner and in particular instances because such a standard and skill is not a matter of general knowledge and can only be supplied by expert testimony." (*Willard v. Hagemeister* (1991) 121 Cal.App.3d 406, 412.) Where the moving party produces competent expert opinion declarations showing that there is no triable issue of fact on an essential element of the opposing party's claim, the opposing party's burden is to produce competent expert opinion declarations to the contrary. (*Ochoa v. Pacific Gas & Elec. Co.* (1998) 61 Cal.App.4th 1480, 1487.)

Dr. Matar presents the declaration of Dr. Klein, a medical doctor who evaluates and treats patients in community care facilities. (Declaration of Dr. Klien, ¶ 1.) Dr. Klein opines that Dr. Matar met the standard of care in all respects for the care and treatment provided to Decedent. (*Id.* at ¶ 7.) Once notified about Decedent's first fall on 7/3/2023, Dr. Klien states that Dr. Matar recommended transfer to the ER for further evaluation and a CT scan and when the patient refused the transfer, Dr. Matar drove to Community and evaluated Decedent himself. (*Id.* at ¶ 8.) Dr. Matar again recommended a transfer but again Decedent refused. (*Id.*) Dr. Klien states that the medical records show Decedent had the mental capacity to make medical decisions and his refusal to be transferred was his right as a patient. (*Id.*) Dr. Klien then opines that Dr. Matar followed the standard of care in recommending neurological checks every hour for the next 72 hours. (*Id.* at ¶ 9.) Dr. Klien also opines that it is within the standard of care for Dr. Matar to have relied on staff at Community to have notified family members of Decedent about the fall. (*Id.* at ¶ 10.) As to causation, Dr. Klien opines that, to a reasonable degree of medical probability, there is nothing Dr. Matar did that contributed to the ultimate passing of Decedent. (*Id.* at ¶¶ 11-12.) This is sufficient for Dr. Matar to meet his initial burden.

In opposition, Plaintiffs rely on the declaration of Dr. Darwish, a full-time practicing Hospitalist at UC Irvine Medical Center, and who has training and experience managing a patient who suffers a fall and head injury, for assessing a patient's capacity to refuse care, and for escalating a change in neurological status. (Declaration of Dr. Darwish, ¶¶ 1-4.) Dr. Darwish offers a conflicting opinion as to whether Dr. Matar fell below the standard of care when determining whether Decedent had the capacity to refuse care. (*Id.* at ¶ 19.) Relying on Dr. Matar's deposition, Dr. Darwish states that Dr. Matar simply asking Decedent whether he understood is insufficient to properly determine capacity. (*Id.* at ¶ 20.) Dr. Darwish opines that further evaluation was required

because Decedent had a recent cerebral infarction, a history of stroke, and an acute head injury which together, “raise a real question of underlying dementia.” (*Id.* at ¶ 21.) Dr. Darwish opines that there should have been a doubt as to Decedent’s mental capacity given his history and the fall and that the standard of care requires a physician to resolve that doubt with a validated cognitive screening tool and/or contacting a family member. (*Id.* at ¶ 22.)

Dr. Darwish also provides a conflicting opinion regarding causation. Dr. Darwish states that Decedent was on medication ordered by Dr. Matar that placed Decedent at a high risk of bleeding – especially after head trauma. (*Id.* at ¶¶ 23-25.) “Against that risk, a new headache three days after a documented head strike, together with a second, unexplained fall the same evening in which [Decedent’s] knees ‘buckled’, should have been treated as probable evidence of an evolving intracranial process....It was not within the standard of care to manage this with nursing-level observation, ice, and monitoring.” (*Id.* at ¶ 26.) Dr. Darwish opines that, within a reasonable degree of medical certainty, that this departure was a substantial factor in Decedent’s death. (*Id.* at ¶ 32.)

Dr. Darwish’s testimony creates a triable issue of material fact as to whether Dr. Matar fell below the standard of care in evaluating Decedent’s capacity to refuse treatment on 7/3/2023, failing to contact Decedent’s daughter given the likely lack of capacity, and whether Dr. Matar’s treatment on 7/6/2023 was a substantial factor in Decedent’s death.

The court DENIES the motion for summary judgment.

Summary

DENY Plaintiffs’ request for judicial notice of Decedent’s death certificate.

OVERRULE Plaintiffs’ and Dr. Matar’s evidentiary objections.

DENY the motion for summary judgment as Plaintiffs’ expert, Dr. Darwish, creates a triable issue of material fact as to whether Dr. Matar fell below the standard of care in evaluating Decedent’s capacity to refuse treatment on 7/3/2023, failing to contact Decedent’s daughter given the likely lack of capacity, and whether Dr. Matar’s treatment on 7/6/2023 was a substantial factor in Decedent’s death.